

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

BRIAN THOMPSON,

Plaintiff(s),

*-against-*THE CITY OF NEW YORK, NYPD DETECTIVE RASHIED MCINTYRE,
NYPD DETECTIVE JOHN KATEHIS, NYPD DETECTIVE QUINN
SEALEY, FORMER DISTRICT ATTORNEY for NEW YORK COUNTY
CYRUS VANCE, JR., AND DISTRICT ATTORNEY for NEW YORK
COUNTY ALVIN BRAGG,

Defendant(s).

Index No.

Summons

Date Index No. Purchased: May 6, 2022

To the above named Defendant(s)

THE CITY OF NEW YORK, NYPD DETECTIVE RASHIED MCINTYRE, NYPD DETECTIVE JOHN
KATEHIS, NYPD DETECTIVE QUINN SEALEY, FORMER DISTRICT ATTORNEY for NEW YORK
COUNTY CYRUS VANCE, JR., AND DISTRICT ATTORNEY for NEW YORK COUNTY ALVIN BRAGG

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is a substantial part of the events & omissions giving rise to the claims were in NY Cty.
which is a basis for venue under CPLR 503(a).

Dated: Ridgewood (Queens), NY

May 6, 2022

Cohen&Green P.L.L.C.

by /s/ Remy Green

Remy Green

Attorneys for Plaintiff

COHEN&GREEN P.L.L.C.

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:
BRIAN THOMPSON,

Plaintiff,

VERIFIED COMPLAINT

-against-

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

THE CITY OF NEW YORK, NYPD DETECTIVE RASHIED
MCINTYRE, NYPD DETECTIVE JOHN KATEHIS, NYPD
DETECTIVE QUINN SEALEY, FORMER DISTRICT ATTORNEY
for NEW YORK COUNTY CYRUS VANCE, JR., AND DISTRICT
ATTORNEY for NEW YORK COUNTY ALVIN BRAGG,

Defendants.

-----X

Plaintiff, BRIAN THOMPSON, by his attorneys Maryanne K. Kaishian and Cohen &
Green, PLLC, hereby complains of the defendants, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. Mr. Brian Thompson is a 61-year-old grandfather who was falsely accused of possessing a controlled substance. He was arrested and illegally subjected to a humiliating and invasive manual cavity search by Defendant Members of the NYPD. Mr. Thompson spent more than two months in deplorable and inhumane conditions of confinement despite being legally ineligible for pre-trial incarceration; he contracted COVID-19 and became seriously ill twice during this period. Mr. Thompson brings this claim for relief because he has suffered damages stemming from Defendants' false allegations against him, wrongful imprisonment, and various other violations of his civil rights.

PARTIES, VENUE AND JURISDICTION

2. At all times mentioned herein, Plaintiff, BRIAN THOMPSON, was an adult resident of New York County in the State of New York.
3. At all relevant times mentioned herein, defendant, City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), the Department of Corrections ("DOC"), the New York County District Attorney ("Manhattan DA"), and their employees.
4. The City of New York is vicariously liable for the alleged actions against Plaintiff, Mr. Thompson, through *respondeat superior*, because the City employees were acting within the scope of their employment when they committed their unlawful acts.
5. At all times hereinafter mentioned, NYPD Detective Rashied McIntyre, Shield No. 5043, assigned to Manhattan North Narcotics Command, NYPD Detective John Katehis, Shield No. 6845, also assigned to Manhattan North Narcotics, and NYPD Detective Quinn Sealey, Shield No. 4827, also assigned to Manhattan North Narcotics, were adults employed by the City of New York and its police department and are sued herein in their official and individual capacities.
6. The Manhattan DA is a policymaker who holds a managerial role, and it is this officeholder's responsibility to train Assistant District Attorneys with the Manhattan DA's Office on the laws, policies, procedures, and practices in which they engage. This is particularly critical where, such as in the case of someone wrongly presented to the court as eligible to have bail set in

their case, there is a likelihood that constitutional violations will take place if training is inadequate.

7. From the time of Mr. Thompson's arrest until January 1, 2022, Cyrus Vance was the Manhattan DA. From January 1, 2022 and through the termination of his charges, District Attorney Alvin Bragg has held this position.
8. The violations against Mr. Thompson began on or about December 3, 2020, at or around 220 W 133rd St, Apt 3A, New York, New York, and continued thereafter at an NYPD precinct, in Manhattan Criminal and Supreme Courts, and in the custody of the Department of Corrections.
9. On February 8, 2022, the criminal case against Mr. Thompson was dismissed, a favorable conclusion that comports with his plea of innocence. *See Thompson v Clark* (200 U.S. 321, 142 S. Ct. 1332 [2022]).
10. Venue is proper in the Supreme Court of New York County, where the Plaintiff and Defendant City of New York reside, where Defendant Manhattan DAs hold office, and where significant elements of the actions complained of herein occurred.
11. Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

GENERAL MUNICIPAL CODE COMPLIANCE

12. On April 23, 2022, Mr. Thompson filed a Notice of Claim which included, *inter alia*, claims for assault and battery, Due Process violations, Fourth Amendment violations, false imprisonment, abuse of process, failure to train, and malicious prosecution.
13. On April 28, 2022, Mr. Thompson filed a petition asking this Court to deem the previously filed Notice of Claim timely in its entirety.

14. A hearing as to the timeliness of any claims raised outside of the 90-day period since the dismissal of Mr. Thompson's criminal case is scheduled for May 17, 2022.

RELEVANT FACTS

15. Mr. Thompson was present at the time the Defendant NYPD Detectives McIntyre, Katehis, and Sealey (collectively "the NYPD Defendants") entered 220 W 133rd St on December 3, 2020 seeking a target other than Mr. Thompson, who was a guest in the location at the time of the search.
16. Upon information and belief, no members of the NYPD were wearing body-worn cameras—a violation of NYPD rules requiring recording during searches—or made any recordings of the search available to Mr. Thompson or his defense counsel.
17. Despite neither being the target of a search warrant nor guilty of the alleged offenses, Mr. Thompson was taken into custody upon false allegations of possessing controlled substances and brought to an NYPD precinct.
18. At the precinct, the NYPD Defendants subjected Mr. Thompson to a humiliating, warrantless, and unlawful visual and manual cavity search.
19. No illegal items were found during this violation of Mr. Thompson's body.
20. The NYPD Defendants also unlawfully searched and/or otherwise tampered with Mr. Thompson's cellular phone. The NYPD Defendants unlawfully seized his property, including his cell phone, which was never returned. Mr. Thompson's personal effects, including sunglasses and keys, were likewise never returned.
21. Mr. Thompson was also subjected to unlawful interrogation while in custody without access to counsel.

22. During Claimant's time in custody, no NYPD Defendant, or any other member of the NYPD, offered him a phone call.
23. Mr. Thompson was arraigned on December 5, 2020.
24. He was falsely charged with two counts of criminal possession of a controlled substance, both under Penal Law § 220.
25. Mr. Thompson's charges were not eligible for bail. *See* C.P.L. § 510.10.
26. Despite the prosecution's assertion that Mr. Thompson himself was eligible for bail on an otherwise ineligible charge as a discretionary "persistent felony offender" because of his two prior prison sentences, one of which dated back to 1988, this was not the case pursuant to the 2004 and 2009 Drug Law Reform Acts ([DLRA] L 2004, ch 738; L 2009, ch 56).
27. Nevertheless, Assistant District Attorneys, employees under the management and supervision of the Manhattan District Attorney, asked the court to set unaffordable bail and repeatedly misrepresented Mr. Thompson's bail eligibility during the pendency of his case.
28. The presiding court anticipated a forthcoming "persistent felony offender" report from the Manhattan District Attorney to substantiate the assistants' claims as to Mr. Thompson's history and eligibility for the PFO sentencing enhancement and bail exception.
29. Such a report never materialized.
30. Upon information and belief, the Manhattan District Attorney never drafted such a report.
31. Upon information and belief, the Manhattan District Attorney has a policy and practice of making bail requests without any intention of ultimately providing the required "persistent felony offender" report.
32. In the meantime, bail was illegally set, in accordance with and wrongful reliance upon the assistants' request for the court to apply the discretionary persistent felony offender exception

in CPL § 510.10(4)(s), in violation of CPL § 510.10 and other rights.

33. This conduct was not a one-off mistake by an agent or employee of the Manhattan District Attorney's Office, even considering only this individual case.
34. In addition to the assertions made at arraignments, other Manhattan DA employees, one of whom is believed to be Assistant District Attorney Veronika Alayeva, would again wrongly oppose Mr. Thompson's release multiple times in December, January, and February of 2021 by falsely claiming that Mr. Thompson's prior sentences rendered the instant case bail eligible.
35. NYPD Defendant Detectives McIntyre and Katehis also falsely testified in grand jury proceedings and at a January 2021 preliminary hearing in furtherance and support of Mr. Thompson's then-ongoing incarceration.
36. As a result of the NYPD's actions and the policies and training failures of the Manhattan District Attorney, Mr. Thompson was wrongly imprisoned from December 3, 2020 through February 8, 2021 without lawful basis.
37. During Mr. Thompson's incarceration, he became seriously ill with COVID-19.
38. This was all while enduring the well-documented deplorable conditions of Rikers Island in the custody and control of the DOC.
39. These conditions give rise to additional damages and violations of Mr. Thompson's rights.
40. On February 8, 2021, Mr. Thompson was finally released in accordance with the law. However, he had been illegally held on unaffordable bail for more than two months in Department of Corrections custody, enduring the inhumane conditions on Rikers Island in which COVID-19 spread uncontrolled.
41. Mr. Thompson's health has deteriorated as a result of his incarceration. He now suffers from chronic shortness of breath and other COVID-related difficulties in addition to mental anguish.

42. Mr. Thompson continued to appear in court to answer these false charges for a full year with no developments in his case.
43. This protracted prosecution on false allegations further implicates the Manhattan DA's failure to train Assistant District Attorneys on issues and policy matters such as fabricated evidence and bail eligibility determinations, including such failures by former Manhattan DA Cyrus Vance, Jr., and current Manhattan DA Alvin Bragg, whose tenure began more than one month prior to the dismissal of Mr. Thompson's charges.
44. On February 8, 2022, the criminal case against Mr. Thompson was dismissed, a conclusion that is in accordance with his plea of innocence. *See Thompson v Clark* (200 U.S. 321, 142 S. Ct. 1332 [2022]).
45. NYPD and DOC employees unlawfully subjected Claimant to conditions that significantly and unlawfully increased Claimant's risk of exposure to the COVID-19 virus—and indeed resulted in his serious and lingering illness—including, but not limited to: failure of police and corrections officers to wear or provide Claimant with a mask; forced proximity to other detained and incarcerated people and NYPD and DOC officers in low-ventilation spaces in violation of New York State and City social distancing guidelines; failure of officers to wear masks at any time during his arrest and processing; exposure of Plaintiff to unsanitary conditions; failure to provide Plaintiff a mask while in custody; exposure to members of the NYPD and DOC who overwhelmingly were not wearing masks; exposure to other detained people whose masks had been removed or taken from them by the NYPD or DOC; unhygienic and overcrowded living conditions within DOC facilities; lack of staffing; lack of access to necessary sanitizing products; lack of food and recreation; and lack of medical care.

46. Upon information and belief, members of the NYPD created official NYPD paperwork relying on fabricated evidence, including about purported observations of Mr. Thompson's alleged pre-arrest conduct, and/or forwarded such fabricated evidence to prosecutors and/or initiated charges against him, relying on fabricated evidence and without probable cause, and testified against Mr. Thompson during the pendency of his case in furtherance of this harm.
47. As a result of this conduct and through the ongoing participation of NYPD members and others named herein in the false arrest and imprisonment, fabrication of evidence, abuse of process, and malicious prosecution of Mr. Thompson, he was incarcerated against his constitutional and statutory rights on Rikers Island in DOC custody while the agency failed to provide basic care and safety for those in its custody. He has lasting physical ailments and emotional damages, the extent of which are not yet known.
48. At no time did defendants have probable cause to seize, detain or arrest the Plaintiff, nor to use any force on Plaintiff, nor was it reasonable for the defendants to believe that such cause existed.
49. At no time did any of the defendants take any steps to intervene in, prevent, correct, or otherwise limit the conduct resulting in serious harm to Mr. Thompson.
50. At no time did employees of the Manhattan District Attorney's Office correct the record as to Mr. Thompson's ineligibility for pretrial detention or seek his release.
51. In fact, assistant district attorneys actively sought to initiate and then continue Mr. Thompson's imprisonment in DOC custody while falsely asserting that he could be legally detained, an assertion relied upon by the court when determining his bail status.
52. At no point were these decisions revisited or acknowledged as wrongful.

53. At all times relevant herein, the Defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.
54. Upon information and belief, at the time the relevant requests were made, the Manhattan District Attorney's Office had no evidence suggesting facts that could satisfy the "persistent felony offender" standard.
55. Upon information and belief, at all relevant times, the individual members of the Manhattan District Attorney's Office making the requests for bail, based on their training and the policies of the Manhattan District Attorney's Office, chose to request bail despite not having any facts to justify it.
56. This "shoot first, aim never" approach is, upon information and belief (and based on the facts set out above, including the fact that at no point did the office either (1) change their position on bail *or* (2) produce the legally required "persistent felony offender" report), the official policy of the Manhattan District Attorney's Office.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983 False Arrest Claim Against the Individual Defendants

57. Plaintiff hereby realleges and incorporates all of the preceding paragraphs as though they were fully set forth herein.
58. The individual defendants willfully and intentionally seized, searched, detained, and arrested plaintiff, and caused them to be imprisoned, without probable cause, and without a reasonable basis to believe such cause existed.
59. Plaintiff had not been engaged in any criminal conduct, nor was he engaged in any conduct that could reasonably be viewed as criminal nor a basis to justify his arrest.

60. Despite the absence of sufficient legal cause, Plaintiff was arrested and jailed.
61. By so doing, the individual defendants subjected Plaintiff to false arrest and imprisonment, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth Amendment of the United States Constitution.
62. By reason thereof, the individual defendants have violated 42 U.S.C §1983 and caused plaintiff to suffer the deprivation of their liberty, loss of their constitutional rights, physical injuries, and mental anguish.

SECOND CAUSE OF ACTION

Deprivation of Fair Trial Rights, Abuse of Process, Fabrication of Evidence, and Malicious Prosecution Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution

63. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.
64. The individual NYPD Defendants willfully and intentionally fabricated evidence by falsely memorializing claims to have witnessed plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the New York County District Attorneys Office in order to justify the arrest of Plaintiff, and to justify, bring about and cause Plaintiff to be deprived of their liberty and to be criminally prosecuted.
65. Defendants fabricated evidence of a material nature, likely to influence a jury's decision, intentionally forwarded that evidence to prosecutors, as a result of which Plaintiff suffered liberty deprivations and other injuries.
66. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering,

psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

67. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

68. By so doing, the individual Defendants subjected the plaintiff to denial of a fair trial and violation of their right to due process by fabricating evidence and otherwise providing prosecutors with a materially false and misleading version of events, and thereby violated plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

69. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer the deprivation of their liberty, loss of their constitutional rights, physical injuries, and mental anguish.

THIRD CAUSE OF ACTION

42 U.S.C. § 1983 Excessive Force Claim Against the Individual Defendants

70. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

71. As a result of the foregoing, defendants subjected plaintiff to excessive force, in part, by forcing Plaintiff to strip naked and by forcibly searching his body when no imminent safety risk existed and in the absence of a warrant and a medical professional, thus subjecting Plaintiff to a level of force by the defendants in excess of what was reasonable under the circumstances.

72. As a result of the foregoing, plaintiff's liberty was restricted and they were put in fear for their physical safety without probable cause or any legal justification, and they were physically injured.

FOURTH CAUSE OF ACTION

42 U.S.C. § 1983 Monell Claim

73. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

74. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD and the DOC.

75. Defendant Manhattan District Attorneys were responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over Assistant District Attorneys tasked with prosecuting cases both individually and as an office.

76. Defendant City of New York had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, unlawful utilization and weaponization of strip searches and cavity searches, abuse of arrest powers, excessive force, and fabrication of evidence, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD.

77. Defendant City of New York had actual or constructive knowledge that there was inadequate supervision over and/or within the DOC with respect to COVID-19 containment, medical care, staffing, absenteeism, unclean conditions, general care, and other the conditions of confinement. These issues have been repeatedly raised with the

Defendant City of New York, including publicly and in reports from a federally appointed monitor.

78. The City of New York had and had a de facto policy of improperly staffing Rikers Island, failing to properly hire and train qualified correction officers, failing to properly manage correction officers and staff at Rikers Island, and failing to keep Rikers Island's facilities in proper working order.
79. The City of New York, including final policy makers at the DOC, have been aware of the problems endured by people in Mr. Thompson's position for many years, and watched conditions deteriorate further, and dramatically, with the introduction of COVID-19.
80. By the time Mr. Thompson was incarcerated, ten months had passed with multiple in-custody deaths and without improvement. The direct and inevitable result of the City of New York's policies were the multiple deprivations of Plaintiff's constitutional rights. The conditions endured by Mr. Thompson violate the most basic rights afforded by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States.
81. Defendant Manhattan District Attorneys had actual or constructive knowledge that Assistant District Attorneys were routinely tasked with assessing a person's eligibility for bail and making requests and representations based on this assessment to the court, and that Assistant District Attorneys were routinely tasked with assessing, on an ongoing basis, the strength or validity of a case brought for prosecution by the NYPD. They also had actual or constructive knowledge that prior training and supervision was inadequate; for example, Assistant District Attorneys had previously failed to make bail requests of the court that adhered to the law and failed to dismiss cases based on faulty evidence. The District Attorneys had actual or constructive knowledge that failure to train Assistant

District Attorneys on these and other issues implicated in the instant case carried a significant likelihood of infringing upon a person's constitutional rights.

82. Despite ample notice of inadequate supervision, Defendants took no steps to ensure that reasonable and appropriate levels of supervision were put place to reasonably ensure that NYPD members, DOC employees, or Assistant District Attorneys engaged in conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the Plaintiff herein.
83. Defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, excessive force, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiff's arrest.
84. The acts complained of herein are a direct and proximate result of the failure of the City of New York and the NYPD, the DOC, and the Manhattan District Attorneys to properly to select, train, supervise, investigate, promote and discipline their employees.
85. The failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers constitutes gross and deliberate indifference to unconstitutional conduct by those officers.

86. The official policies, practices and customs of the City of New York and the NYPD alleged herein violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to the Constitution of the United States.
87. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures, and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.
88. The City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of the Plaintiff's rights in particular.
89. By reason thereof, the municipal and policymaking defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

FIFTH CAUSE OF ACTION

Violations of New York State Law by Individual and Municipal Defendants Pursuant to the New York State Constitution and New York State Law

90. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

Respondeat Superior Liability

91. The conduct of officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police and law enforcement

officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

Assault

92. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

Battery

93. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

Conversion

94. Defendants committed conversion by intentionally taking possession of and/or interfering with Plaintiff's personal property in derogation of Plaintiff's rights.

False Imprisonment and Unreasonable Detention

95. By the actions described above, the Defendants described above did falsely arrest and/or imprison Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant for his arrest, and without any right or authority to do so.

96. Plaintiff was conscious of the confinement and it was without their consent.

Negligent Hiring, Training and Supervision

97. Upon information and belief, Defendant City supervised and trained, or failed to train, the police officials described above.

98. Upon information and belief, Defendant District Attorneys supervised and trained, or failed to train, Assistant District Attorneys who prosecuted the case against Mr. Thompson under the authority of the District Attorney's Office.

Denial of Medical Care

99. Defendants denied Plaintiff medical care.

Excessive Detention

100. Defendants deliberately detained Plaintiff for excessive and unreasonably prolonged periods of time.

Fabrication of Evidence

101. Defendants fabricated evidence against Mr. Thompson and provided such information to the prosecution knowing that this was likely to affect the outcome of his charges.

Malicious Prosecution

102. Defendants commenced criminal proceedings against Plaintiff maliciously and without probable cause.

103. All charges were terminated in Plaintiff's favor.

Violations of the New York State Constitution

104. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

105. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

106. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiffs.

107. The Defendants also engaged in both intentional and negligent infliction of emotional distress; negligent hiring, screening, retention, supervision, and/or training; and denial of rights to communicate by phone while in custody.

108. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

DEMAND FOR A JUDGMENT

WHEREFORE, the plaintiff demands judgment against the individual defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
- iii. Statutory attorney's fees pursuant to, inter alia, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- iv. Such other relief as the Court deems just and proper.

Dated: New York, New York
May 6, 2022

By: 
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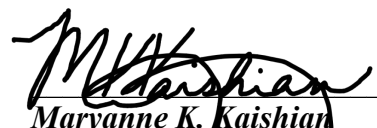
ATTORNEY'S VERIFICATION

I, MARYANNE K. KAISHIAN, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff does not reside in the County (Brooklyn) where I maintain my office, nor in the County (Queens) where Cohen & Green, PLLC maintains its office.

Dated: Brooklyn, New York
May 6, 2022

By:


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